

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:
Mr. Justice Md. Moinul Islam Chowdhury

CIVIL REVISION NO.1217 OF 2003

Jobed Ali being dead his legal heirs, Md.
Ajhar Howlader and others.

----- Plaintiff-Respondent-Petitioners
=Versus=

Mukul Begum and others
--Defendant-Appellant-Opposite Parties

Mr. Khandaker Shamsul Haque, Advocate
----- For the Petitioners

None appears.
----- For the Opposite Parties

Heard and Judgment on 18.03.2018

At the instance of the present plaintiff-respondent-petitioners, Jobed Ali being dead his legal heirs Md. Ajhar Howlader and others this Rule has been issued calling upon the opposite party Nos.1 to 13 to show cause as to why the impugned judgment and decree dated 25.11.2002 passed by the learned Additional District Judge, Second Court, Barisal in Title Appeal No.164 of 1997 reversing the judgment and decree dated 28.05.1997 passed by the learned Senior Assistant Judge, Sadar, Barisal in Title Suit No.334 of 1990 should not be set aside.

The relevant facts for disposal of this Rule, *inter-alia*, are that the predecessor of the present-petitioners as the plaintiffs filed the Title Suit No.334 of 1990 in the court of the learned Senior Assistant Judge, Barisal for declaration of title in respect of schedule specifically

mentioned in the plaint. The plaint contains that the suit land was originally belonged to Moniram Dhupi as the C.S. recorded tenant upon the suit land measuring 97 decimals appertaining to Plot No.1837, C.S. Khatian No.506, Mouja Charkowa, Barisal. The said Moniran Dhupi transferred the land to the father of the plaintiff by the registered sale deed dated 22.11.1907 who purchased the land in benami of his minor son Alimuddin. The plaintiff's father died leaving behind two sons namely, Jobed Ali and Alimuddin. Alimuddin died leaving behind his brother, as such, the plaintiff inherited the entire land measuring 97 decimals of land and he was in possession by constructing dwelling house, tank and fruit garden. During R.S. settlement the suit land was recorded in the name of the plaintiff's father reducing the measurement of land from 96 decimals however, recorded in R. S. Khatian No.1222 in the name of Raj Kumar Dhupi and Abdul Hamid by mistake. Subsequently, the disputed 12 decimals of land was also recorded in the name of Raj Kumar Dhupi and Abdul Hamid in S.A. Khatian No.1008 by mistake. The plaintiff filed the present suit for wrong recorded in R.S. and S.A. Khatian in the name of the predecessor of the present-defendants by mistake and the present defendants were never in possession of the suit land but they denied connecting the record.

The present-defendant-opposite party Nos.7-19 contested the suit by filing a written statement denying the statements made in the plaint and also contending, *inter-alia*, that the contesting defendants are heirs of S.A. recorded tenant Abdul Hamid. The further contention are that the suit land did not correspond to the boundary described in the sale deed dated 22.01.2007 executed in favour of the plaintiff as there was no sale. Maniram Dhupi died leaving behind only brother Prassanna Kumar Dhupi and then he died leaving behind only son Raj Kumar Dhupi and the land was correctly recorded in his name but the remaining land measuring 96 decimals of land was wrongly recorded in the name of the present-plaintiff. Their predecessor Raj Kumar transferred 38 decimals of land including the disputed 12 decimals of land in Plot No.2440 in favour of one Amir Ali Khan, the predecessor of the present-opposite parties by a sale deed dated 27.01.1971 and the plaintiff was a witness in the said sale deed, thus, the suit should be dismissed.

After hearing the parties the learned trial court decreed the suit on contest by the defendant Nos.7-19 and ex-parte against others. Being aggrieved the present-opposite parties as the appellants preferred the Title Appeal No.164 of 1997 in the court of the learned District, which was heard by the learned Additional District Judge, 2nd court, Barisal on transfer who by his judgment and decree allowed the appeal by reversing

the judgment and decree of the trial court. This revisional application has been filed under Section 115(1) of the Code of Civil Procedure challenging the legality of the impugned judgment and decree and the Rule was issued thereupon.

Mr. Khandaker Shamsul Haque, the learned Advocate appearing for the petitioner Nos. 1(a) to 1(i) submits that the learned trial court got the findings that on the basis of kabala deed the plaintiff possessed the suit and he has the right and title over the suit land and the defendants have no right title and possession but the learned appellate court without reversing above findings reversed the trial court's judgment which is bad in law and liable to be set aside for ends of justice, therefore, the Rule should be made absolute.

The learned Advocate also submits that Maniram Dhupi sold the suit land along with other land total measuring 97 decimals by a deed dated 22.01.1907 (Exhibit-1) in favour of the predecessor of the present-plaintiff-petitioner which the contesting-defendants admitted, as such, if the defendants admitted the deed itself they must accept the contents about the land measuring 97 decimals as there was no sale or change of entitlement of the present-plaintiff-petitioner but the learned appellate court below misread and failed to consider the deed Exhibit-1, therefore,

committed an error of law by allowing the appeal which is liable to be set aside and the Rule should be made absolute.

This matter has been appearing in the daily cause list for more than year but no one appeared to oppose the Rule on behalf of the opposite party despite the list published with the name of the learned Advocates for the respective parties.

Considering the above submissions made by the learned Advocate appearing for the petitioner and also considering the revisional application filed under Section 115(1) of the Code of Civil Procedure along with annexure therein, in particular, the impugned judgment and decree passed by the learned appellate court below and also perusing the materials in the lower courts' record, it appears to me that the present-petitioner as the plaintiff filed the title suit for a declaration of title upon the suit land measuring 12 decimals of land appertaining to Dag No.1837 of P.S. Khatian No.506, Mouja Charkawa, District- Barisal. One Maniram Dhupi was the original owner of the suit land and other land total measuring in 96 decimals which he transferred in favour of one Kanai, the predecessor of the plaintiff-petitioner by a sale deed dated 22.01.1907 as exhibit-1 in benami of minor son Alimuddin. The said Kanai died leaving behind Alimuddin and Jobed Ali and two sons. Alimuddin died leaving behind only brother Jobed Ali who obtained the

Rule of this revisional application and he died leaving behind the present-petitioner Nos. 1(a) Md. Ali Howlader and others as sons and daughter they have been substituted after the death of the original petitioner.

The dispute arose between the parties in the present case when 12 decimals of land out of 97 decimals of land (later on 96 decimals of land) published in the RS and S.A. record of right erroneously. In this regard, the plaintiff submitted documents in the courts below that there was no genuine of ownership from the year of 1971 until today as there was no transfer by way of sale or Heba, therefore, record of right cannot be changed regarding any portion of the total land measuring 96 decimals of land. However, the present-opposite parties failed to oppose the Rule. They have contended in the courts below that Maniram Dhupi sold the suit land in favour of Kalai who was the predecessor of the present-plaintiff-petitioner. The present-opposite parties also contended that the said Maniram Dhupi died leaving behind his only brother Prassanna Kumar Dhupi after his death and the land was succeeded by Raj Kumar Dhupi, therefore, the record of right in RS and SA was correctly published. The said Raj Kumar Dhupi later on transferred 38 decimals of land including the 12 decimals of land in favour of Amir Ali who is the predecessor of the present-opposite party.

In the above given factual asfacts in this case, it transpires to me that there are some disputes between the parties as to the 12 decimals of land. This Court has to take a decision whether the deed dated 22.01.1907 was a valid document or not and whether that document of more than 110 years old could be proved by the plaintiff-petitioner in the courts below.

I have carefully examined the Exhibit-1, the sale deed dated 22.01.1907 and I find that the land in the said deed is measuring 97 decimals under Mouja Charkawa, Dag No. 1837, District- Barisal, which the present-opposite parties also claimed to have succeeded from the subsequent purchaser.

After examining the other relevant documents Exhibited as Exhibit-1 and Exhibit-6 being the report submitted by the Advocate Commissioner on 05.09.1993 ascertaining the possession of the land by the present-plaintiff-petitioner upon the suit land measuring 96 decimals of land, the petitioner also submitted latest record of right being BS has been published correctly in the name of the present- petitioner which was not published when the suit was pending in the appellate court below.

On the other hand, the present-opposite parties could not substantiate their entitlement upon the 12 decimals of land, despite

above. Accordingly, the present-plaintiff-petitioners are entitled to get their right upon the 12 decimals of land as the plaintiff was successful to prove his case in the courts below and the learned trial court decreed the suit lawfully.

Now, I am inclined to examine the judgment and decree passed by the courts below. The learned trial court came to a lawful conclusion to decree the suit on the basis of the following finding:

বিজ্ঞ এ্যাডভোকেট কমিশনার সা-হব পরিমাপন বামরাইয়া বিগত ইং-রজী ২৫/৯/৯৩ তারি-খ এক প্রতি-বদন দাখিল ক-রন। উক্ত এ্যাড-ভা-কট কমিশনা-রর প্রতিবেদনের বিরুদ্ধে ৭-১৯ নং বিবাদীপক্ষ কোন আপত্তি প্রদান ক-রন নাই। তাহা হই-ল বাদীপ-ক্ষর এ্যাড-ভা-কট কমিশনা-রর দাখিলী বিগত ইং-রজী ২৫/৯/৯৩ তারি-খর প্রতি-বদন আদালত গ্রহণ ক-রন। উক্ত এ্যাড-ভা-কট কমিশনার সা-হ-বর প্রতি-বদন পয়া-লাচনা করি-ল দেখা যায় বিগত ইং-রজী ২২/০১/১৯০৭ স-নর কবলা দলিলের চৌহদ্দির ভূমি সাবেক ৫০৬ খতিয়ানের সাবেক দাগ ১৮৩৭ এর .০৯৭ শতাংশ ভূমি রেকর্ডিয় মালিক এবং কবলার দলিলের চৌহদ্দি এক ও অভিন্ন এবং হাল ২৪৪০ নং দা-গর ভূমি ও সা-বক ১৮৩৭ নং দা-গর ভূমি এক ও অভিন্ন।

The learned appellate court came to a wrongful conclusion to allow the appeal preferred by the present-opposite parties by the following incorrect decision:

“From the above evidence of the P.Ws. It is proved beyond any suspicion or ambiguity that the disputed 12 decimal land is being possessed by the defendants and plaintiff does not have any possession in that land”

In view of the above discussions and also after perusal of the impugned judgment and decree passed by the courts below, I consider

that the learned appellate court committed an error of law by setting aside the judgment and decree passed by the learned trial court on the ground that the suit land was not possessed by the present-plaintiff-petitioner by disregarding the Advocate Commissioner Report on 25.05.1993 (Exhibit-6). However, the learned trial court came to a lawful conclusion to decree the suit on the basis of the deposition of the PWs. 1, 2 and 3 and also considering the Advocate Commissioner report by considering that the plaintiff-petitioner record of right cannot be removed if there was no change in the entitlement of the suit land for the long period of 110 years because the admitted position between the parties that the suit land was originally owned by Maniram Dhupi and also the sale deed dated 22.01.1907, as such, the learned trial court committed no error of law by decreeing the suit. I am, therefore, inclined to interfere into the judgment and decree passed by the learned appellate court.

Accordingly, I find merit in the Rule.

In the result, the Rule is made absolute.

The ad-interim order of stay upon operation of the judgment and decree passed by the learned appellate court is hereby recalled and vacated.

The Section is directed to communicate this judgment and order to the court concerned immediately and also the Section is directed to send down the lower courts' record at once.